Better Knowledge
Better Society

Ethical issues of using admin data for research

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Administrative Data Research Network

An ESRC Data Investment

In the UK

Legal barriers to share and link government data for **research**

Administrative Data Taskforce

- More efficient use of resources
- Inform policy
- Improve data management
- Better transparency

The ADRN

- UK-wide partnership between academia, government departments, national statistics authorities and third sector

- **bespoke** service for using administrative data for socio-economic research
  - Clear public benefit
  - Non-commercial use
  - De-identified unit level linked data
  - Not available through existing services

- Funded by the Economic & Social Research Council

Our governance

- **Board** convened by UK Statistics Authority
  - reports to Parliament (includes lay member)
- **Directors Group** convened by ESRC
  - reports to the Department for Business, Innovation & Skills
- **Approvals Panel** of independent experts
  - academics, data owners, privacy experts and 2 lay members
- **Expert Scientific Advisory groups**
- **Citizen Panel** *(forthcoming)*

The ethics issues

Administrative Data: information gathered for operational purposes – not for research

1. **Consent**
   - ▷ Public do not have a choice in providing admin data
2. **Public resources**
   - ▷ Justify their re-use
3. **Data sharing**
   - ▷ Is it legal *and* ethical?

How we do

Ethical review for each ADRN research project

1) independent
2) adequate

Ethics Review Approval

- ▷ Researcher's institution
- ▷ National committees

ADRN Approvals Panel

- ▷ Is your research suitable?

Legal basis for sharing

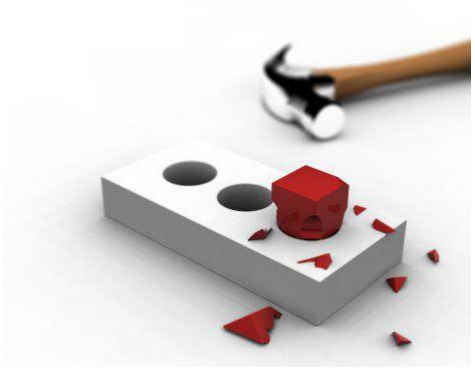
- ▷ Data owners

Does it fit?

Admin Data: systems in place often **inadequate**

Ethical guidelines developed in the context of **biomedical research**, different aim:

- Participants recruited
- Use of human tissues
- "Human" confidentiality



- **Secondary re-use of data is always ok because they are anonymised..**

	Please mark an X in the appropriate right-hand column/box	Yes	No	Not certain
5. Research that *may* need to be reviewed by an external Ethics Committee				
i	Will the study require Health Research Authority approval? (*See Note 1*)		X	
ii	Does the study involve participants lacking capacity to give informed consent? (*See Note 2*)		X*	
	Is there any other reason why the study may need to be reviewed by another			

No participant = no consent issue

		YES	NO
1.	Will the study involve human participants?		x
2.	Will it be necessary for participants to take part in the study without their knowledge and consent at the time? (e.g. covert observation of people)		N/A
3.	Does the study involve participants who are unable to give informed consent? (e.g. children, people with learning disabilities)		N/A
4.	Does the study involve participants who are commonly vi children, elderly, people with learning disabilities) **CRB c**		

2	**Rights of human subjects** Complete this box *only if* the project involves living human subjects, or if your work requires extensive interaction with land users or other people in the course of your research.	*yes*	*no*	*N/A*
A	Is confidentiality adequately handled by normal tenets of ethical academic research?			✓
B	Are research subjects capable of understanding their rights and of providing informed consent?			✓

2.6 TYPE OF PROJECT

Is the project:

- Primary Research ☐
- Research limited to the use of previously collected *identifiable* data ☐
- Research limited to the use of previously collected *anonymised* data ☒
- Clinical Audit ☐
- Service evaluation or Development ☐

1. Does your research involve human subjects?

☐ YES > undertake ethics self-assessment or full-ethics assessment form attached

☑ NO > go to Question 2

self-assessment!

Secondary re-use

14.	Is the right to freely withdraw from the study at any time made explicit?		N/A
15.	Where secondary data is to be used, is the risk of disclosure of the identity of individuals minimal?	X	
16.	If you are using secondary data, are you obtaining it from any where other than recognised data archives?	X	

Anonymised = safe

Doing our best

We help researchers applying for ethics review

- **Guidance** for ethics committees & researchers
- **Identifying** process and suitable bodies

- **UK Statistics Authority** **National Statistician's Data Ethics Advisory Committee (NSDEC)**

- **Approvals Panel** final assessment

https://adrn.ac.uk/media/1172/ethics-and-administrative-data-guidance_00_08_pub.pdf

Administrative Data Research Network

An ESRC Data Investment

Ethics and administrative data

Guidance for research ethics committees
Guidance for researchers

Why is ethical review needed?

The Network has identified ethical review as a crucial element of the overall project approval process for the network. Our independent Approvals Panel requires researchers to provide evidence of a supportive verdict from an institutional ethical review on their research proposals.

This is because there are ethical factors to consider when using and linking administrative data and we want to be sure that due consideration has been given to the context of the research project.

Three key factors to address:

1. **Consent**
2. **Re-identification risk**
3. **Sensitivity**

https://www.statisticsauthority.gov.uk/national-statistician/national-statisticians-data-ethics-advisory-committee

UK Statistics Authority

Home | About the Authority | News | Reports and Correspondence | Monitoring and Assess

UK Statistics Authority > National Statistician > National Statistician's Data Ethics Advisory Committee

National Statistician's Data Ethics Advisory Committee

The National Statistician's Data Ethics Advisory Committee (NSDEC) has been established to advise the National Statistician that the access, use and sharing of public data, for research and statistical purposes, is ethical and
for the public good.

C1	Data subjects to be studied

Does the Study include all subsections of the population (i.e. all ages, sex, ethnic groups etc	☐ Yes ☐ No *If no please detail which subsections with justification(s) below*
Subsections of the population (including vulnerable groups) the project focuses on:	
Justification for focusing on these subsections or groups:	

UK Statistics Authority

B2	Data Use

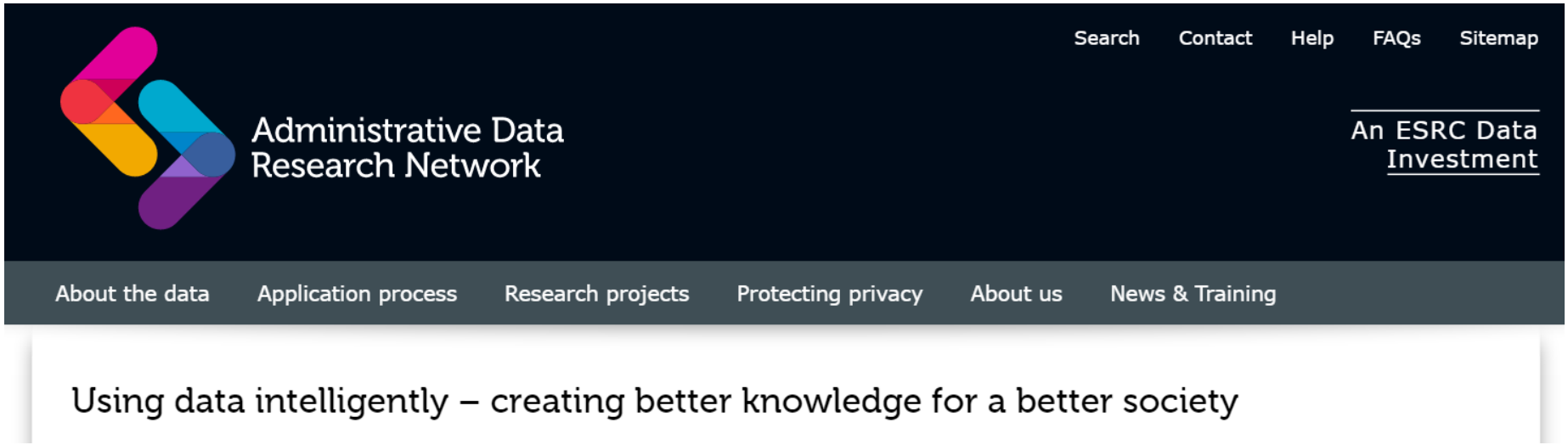
Type of data	Data Level *Please specify the name of the data set*			
	Aggregate Data	Identifiable Data	De-identified personal data	Anonymised/ pseudo anonymised
Administrative data *(please specify, e.g. Patient Register 2011, School Census 2012 etc, in the relevant options adjacent)*				
Big Data *(please specify e.g. Twitter data, smart meters and mobile phones, in the relevant options adjacent)*				
Survey Data *(please specify e.g.LFS, BRES, etc in the relevant options adjacent)*				
Census Data *(please specify year, e.g. Census 2011 in the relevant options adjacent)*				

The real challenges

1. **Informed consent**
   - No implementable mechanism?
2. **Old data**
   - What do we do?
3. **Privacy vs ethics**
   - Grey area
4. **Opting out/in**
   - Is this sustainable?
5. **What research use is ethical?**
   - Is public benefit enough?

Who should address?

- **Researchers**
- **Ethics Committees**
- **ADRN**
- **Government**
- **Other indep. authorities**
- **Law**



THANK YOU!

questions?

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www.adrn.ac.uk

Administrative Data Research Network

UK • DATA ARCHIVE

University of Essex

E·S·R·C ECONOMIC & SOCIAL RESEARCH COUNCIL

References

- Expert Advisory Group on Data Access
- Research Ethics Committee (REC)
- UK Data Service Guidance for RECs
- Ethical guidelines
- ADRN Ethics Guidance
- UKSA National Statistician's Data Ethics advisory Committee
- Administrative Data Task Force
- World Health Organisation Ethics Review Committee